

M/s Gogi Ice And Cold Storage v DVVNL — writ on disconnection-period minimum charges dismissed for CGRF/Ombudsman remedy

High Court of Judicature at Allahabad · Division Bench · 8 March 2019 · Writ-C No. 7448 of 2019 · WRIT - C No. - 7448 of 2019
· **Writ dismissed; relegated to CGRF then Ombudsman under cl. 7.10.**

HEADNOTE

A writ raising liability for minimum charges during disconnection is dismissed where the consumer has the statutory alternative of the Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the U.P.E.R.C. (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003, and thereafter the Ombudsman under clause 7.10(iv). Counsel did not dispute that route and could not show why the petitioner should not be relegated to it. The dues question is left to the forum.

FACTUAL SUMMARY

M/s Gogi Ice and Cold Storage and another filed a writ against Dakshinanchal Vidyut Vitran Nigam Ltd. before the Allahabad High Court. The dispute was whether the petitioner was liable to pay minimum charges during a period of disconnection. After a 5 March 2019 listing for respondents to take instructions, a Division Bench heard the petition on 8 March 2019. Counsel for the petitioner did not dispute the availability of the statutory Consumer Grievance Redressal Forum and Ombudsman route for electricity-dues grievances.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(i)

CGRF then Ombudsman as alternative remedy for electricity dues

HOLDING

Where the grievance is liability for electricity dues, including minimum charges during disconnection, and counsel neither disputes nor substantiates any ground to avoid the statutory route, the writ is dismissed on alternative remedy: Consumer Grievance Redressal Forum under clause 7.10(i) of the Electricity Supply Code, 2005 read with the U.P.E.R.C. (CGRF & Ombudsman) Regulations, 2003, and thereafter Ombudsman under clause 7.10(iv). ¶ 2-4

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances Writ on minimum charges during disconnection dismissed; petitioner relegated to CGRF under 7.10(i) and Ombudsman under 7.10(iv). ¶ 3-4

consumer-grievance-redressal-forum-remedy-clause-7.10 Counsel did not dispute the CGRF/Ombudsman statutory remedy for electricity-dues grievance and could not show why the writ should not be relegated. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE TO PAY MINIMUM CHARGES DURING THE PERIOD OF DISCONNECTION

Left to CGRF/Ombudsman; writ dismissed without deciding the dues dispute on merits. ¶ 2-4